PECA 2016 - CYBER HARASSMENT EXTRACT

Fake pictures, deepfakes, blackmail, cyberstalking and online harassment

Purpose

This extract covers Prevention of Electronic Crimes Act, 2016 provisions most relevant to women facing online abuse in Punjab. Use the official PECA text for exact wording when filing.

Section 16 - Unauthorized access to information systems

Accessing a system without authorization; relevant to hacked accounts or devices.

Section 17 - Unauthorized copying or transmission of data

Copying or transmitting data without authorization; relevant to stolen chats, photos or files.

Section 18 - Interference with information systems

Damaging, altering or interfering with systems/data; relevant to account sabotage.

Section 20 - Cyberstalking / harassment through information systems

Using information systems to harass, intimidate, insult or harm a person; relevant to abusive messages and repeated harassment.

Section 21 - Offences against modesty of a natural person and minor

Key provision for non-consensual intimate images/videos, sexually explicit content, superimposing a face onto explicit material (deepfake), and blackmail using intimate images.

Section 22 - Hate speech

Relevant where online content incites hatred or violence against a person or group.

Section 24 - Cyberstalking

Covers repeated electronic contact, monitoring, tracking, following or attempting contact despite clear disinterest; includes electronic monitoring or intimidation.

Section 25 - Spamming

Sending repeated unsolicited messages; may support a complaint where used to harass.

Section 26 - Spoofing

Creating false identity or misleading source of communication; relevant to fake profiles, fake numbers and impersonation.

Section 27 - Unauthorized interception of transmission

Intercepting communications without authorization; relevant to hacked calls/messages.

Section 28 - Cyber terrorism

Relevant only where conduct involves specified serious threats to public safety or critical infrastructure.

Section 29 - Electronic forgery

Creating, altering or using fake electronic documents; relevant to fake nikahnama, fake IDs and deceptive screenshots.

Section 30 - Electronic fraud

Dishonest use of electronic systems for unlawful benefit; relevant to financial scams and fraudulent accounts.

Section 37 - Power to remove/block unlawful content

Authority may direct removal or blocking of unlawful online content.

Section 38 - Preservation and collection of data

Provides mechanisms for preserving digital evidence during investigation.

Section 45-48 - Investigation, complaints and procedure

Covers complaint handling, investigation powers, international cooperation and procedural safeguards.

Fake pictures, deepfakes and blackmail

If someone shares, threatens to share, edits, or creates intimate/explicit images of a woman without consent, the primary provision is PECA Section 21. It expressly covers superimposing a person's face onto sexually explicit images or videos - the core deepfake scenario.

If the person repeatedly messages, follows, monitors or threatens online, add PECA Section 24. If threats involve harm, add PPC Section 506. If fake documents or fake profiles are used, consider PECA Sections 26, 29 and 30.

Evidence checklist

Screenshots with URLs and usernames; original chats; images/videos and metadata; call recordings; payment demands; account links; dates/times; witness details; device backups. Do not delete anything and do not pay the blackmailer.

Where to report

FIA Cybercrime / cybercrime authorities: helpline 1991. Also file a local police complaint if there is physical danger, coercion, or offline contact.